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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STELLIO NEDEROVIQUE,

Petitioner

VS.

JELENA SMITH,

Respondent

) Case Number: FDV-25-818547

) Hearing Date: July 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Stellio Nederovique and Respondent Jelena Smith are not married and they dated for 6 months. The parties do not have minor children in common. Petitioner is represented by attorney Yosef Peretz. Respondent is self-represented.
- 2) On 7/23/2025, Petitioner filed a Request for Domestic Violence Restraining Order against Respondent.
- 3) Several hearing dates were held between 8/15/2025 and 12/5/2025 during which Petitioner stated he was having trouble getting Respondent served. On 10/31/2025, Judge Gold made a finding that Respondent is evading service and required Petitioner to serve Respondent by email and text message.
- 4) According to the Proof of Service filed 11/10/2025, Petitioner's moving papers were served by email and text message.

- 1 5) On 12/5/2025, following a hearing at which Respondent did not appear, the Court issued a 2-year
2 Restraining Order After Hearing protecting Petitioner from Respondent.
- 3 6) On 5/5/2026, the Court granted an ex parte request by Petitioner that he be permitted to have
4 Respondent served with the restraining order by alternate means. The Court ordered that service
5 of the restraining order be accomplished by email and text “and to known social media account(s)
6 via messenger or comparable method of communication.”
- 7 7) Now on for hearing is Petitioner’s Request for Order filed 3/18/2026 asking the Court to award
8 him \$65,645 in attorney’s fees and \$7,342.10 in costs, for a total request of \$72,987.10, under
9 Family Code section 6344.
- 10 8) At the prior 5/12/2026 hearing, Respondent appeared in pro per and stated she had not received
11 sufficient notice of the prior proceedings. The Court adopted its Tentative Ruling without
12 objection and ordered the following:
- 13 a. The hearing on Petitioner’s Request for Order filed 3/18/2026 is continued to Tuesday,
14 7/21/2026 at 9:00 AM in Dept. 404.
- 15 b. At least 20 calendar days prior to the next hearing date, Petitioner shall file and serve a
16 declaration explaining why he believes (pursuant to Family Code section 6344(c)) that
17 Respondent has or is reasonably likely to have the ability to pay the fees and costs
18 requested. Petitioner shall include in his declaration statements addressing whether he
19 believes Respondent has any assets or debts; whether Respondent was employed or self-
20 employed during their dating relationship (and what profession); how much he believes
21 Respondent was earning at the time; and how Respondent covered her expenses during
22 their dating relationship. Petitioner shall also state whether he believes Respondent is
23 currently employed or self-employed (and what profession).
- 24 c. Petitioner’s request for an alternative service method is hereby granted. Petitioner shall
25 serve the following documents on Respondent by email:
- 26 i. His Request for Order and all related pleadings (including the declaration the
27 Court is requiring the Petitioner to file regarding Respondent’s ability to pay)
- 28 ii. Copy of the Tentative Ruling Instructions
- 29 iii. Blank Responsive Declaration

- iv. Findings and Order After Hearing for the 5/12/2026 hearing date.
- v. Petitioner's attorney shall also send a text message to Respondent and send direct message(s) to Respondent's known social media account(s) informing her of the next hearing date, informing her that Court documents were emailed to her which include a motion for attorney's fees, and informing her of the amount in attorney's fees that Petitioner is requesting.
- vi. In advance of the next hearing date, Petitioner shall file a Proof of Service evidencing compliance with the order set forth above (and Petitioner's attorney shall attach to the Proof of Service screenshots of the text and other direct messages to Respondent).
- vii. Petitioner's attorney was also ordered to prepare the Findings and Order After Hearing.

9) On 6/30/2026, Petitioner filed a Declaration. Petitioner states that when he first met Respondent, Respondent was employed part-time at Nordstrom Rack from July through September 2024. Petitioner states that after leaving Nordstrom Rack "and throughout the remainder of our relationship, [Respondent] was not employed in a traditional full time job." Instead, Petitioner states Respondent had and continues to have an extensive social media presence (48,000 followers on TikTok and 1.9 million likes and 9,000 followers on Instagram) and she "represents herself as an influencer, content creator, actress, and entertainment industry professional." Petitioner states that on 1/1/2026, Respondent posted that she was getting paid to be in a bikini for "s3 of euphoria" and the post includes an image of "what appears to be a paycheck or other type of payroll document from the HBO studio." The attached image appears to be only a small excerpt of a document bearing Respondent's name, the words "Studio: HBO," and the phrase "Check Details." The excerpt does not show the amount of any payment. On 1/24/2026, Petitioner states Respondent published a social media post stating that she had "shot my 2nd HBO show." Petitioner states the post includes photographs depicting a building identified as "Stage 17," together with production tents and golf carts commonly associated with film and television productions. Petitioner states, based on Respondent's own representations and the contents of the post, he believes Respondent has worked on multiple HBO productions and has

received compensation for work in the entertainment industry. Petitioner also attached what he states are screenshots of images from Respondent's social media accounts which Petitioner states show that Respondent collaborates with certain brands (e.g., Frankies Bikinis, I Am Gia, Tiger Mist, Miss Mee, Windsor Store, and Edikted). Petitioner further provided what he states are images from Respondent's social media accounts which suggest she attended Coachella and traveled to Joshua Tree.

10) On 6/30/2026, Petitioner filed a Supplemental Brief stating that Respondent has failed to appear at every stage of these proceedings and has repeatedly evaded service. Petitioner argues that by refusing to participate in this action, Respondent has prevented Petitioner from obtaining discovery or any financial information directly from her. Petitioner argues that he should not be prejudiced by Respondent's failure to participate in these proceedings or by her refusal to provide financial information that only she possesses.

11) On July 8, 2026, Petitioner filed a Proof of Service stating that his Request for Order, supporting papers, Petitioner's recently filed declarations, and "Tentative Ruling" were served on Respondent by email and text message.

12) Respondent has filed no pleadings in this matter to date.

B. Findings and Order

1) The Court notes there is no Findings and Order After Hearing (FOAH) on file for the prior 5/12/2026 hearing date because Petitioner's attorney did not prepare and submit the FOAH to the Court, as the Court previously ordered him to do. This means that Respondent has not been served with a copy of the FOAH for the prior 5/12/2026 hearing date and the Court is unable to find that Respondent has had sufficient notice of the 7/21/2026 hearing date. The Court also notes that the Proof of Service filed by Petitioner on 7/8/2026 does not mention whether a copy of the Tentative Ruling Instructions and a blank Responsive Declaration were served on Respondent, as previously ordered and which are required to be served per San Francisco Local Rule 11.7(D)(3)(a) and California Rules of Court, rule 5.92(a)(1)(C).

2) The Court finds good cause to continue the hearing on Petitioner's Request for Order filed 3/18/2026 to Thursday, 10/8/2026 at 9:00 AM in Dept. 404.

1 3) At least 30 calendar days prior to the next hearing date, Petitioner's attorney shall have the
2 following documents sent to Respondent by email and text message and file a Proof of Service
3 evidencing service of:

- 4 a. Findings and Order After Hearing for the 5/12/2026 hearing date (Petitioner's attorney to
5 prepare and submit to the Court);
6 b. Findings and Order After Hearing for the 7/21/2026 hearing date (Petitioner's attorney to
7 prepare and submit to the Court);
8 c. San Francisco Tentative Ruling Instructions;
9 d. Blank Responsive Declaration (FL-320); and
10 e. Blank Income and Expense Declaration (FL-150).

11 4) If Respondent wishes to oppose Petitioner's request for attorney's fees, Respondent shall file and
12 serve a Responsive Declaration (FL-320) and a completed Income and Expense Declaration (FL-
13 150) at least 10 calendar days before the next hearing date.

14 5) Petitioner's attorney shall prepare the Findings and Order After Hearing for the 7/21/2026
15 hearing date.

16 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).
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